Chat Legal Pty Ltd
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Service agreement

The terms of engagement between you and Chat Legal Pty Ltd ABN 64 621 391 553 (we/us/our) are outlined below. *By continuing to instruct us, you acknowledge and agree that you have read and accept the terms of this agreement*.

1 Legal rights

You have the right to:

a negotiate a costs agreement with us;

b receive a bill from us;

c request an itemised bill after receipt of a lump sum bill;

d request written reports about the progress of your matter and the costs incurred in your matter under s 317 of the *Legal Profession Act 2007* (Qld) (**LPA**);

e in the event of a dispute in relation to legal costs you may apply for a costs assessment under div 7, pt 3.4 of the LPA within 12 months of delivery of a bill or request for payment or such extended time as may be permitted by the court or costs assessor after considering the reason for the delay; **and** apply to set aside the costs agreement under s 328 of the LPA within six years or other times as the law permits;

f under s 303 of the LPA, in the event the LPA does not apply to this matter, or it is not possible to decide the jurisdiction in which you first instructed us, then if the legal services are or will be provided wholly or primarily in another jurisdiction, or the matter has a substantial connection with another jurisdiction:

g accept or reject any offer we make for an interstate costs law to apply to your matter; or

h notify us in writing that you require an interstate costs law to apply to your matter; and

i be notified under s 315 of the LPA of any substantial change under this Section.

2 Service and pricing

The work (the **Work**) you have engaged us to undertake will be outlined in writing (whether by letter, email or other electronic communication) (**Letter**) from time to time.

We only work on a fixed price basis.

Our fixed prices to undertake the Work will be provided for in the Letter.

Our fixed prices in the Letter relate to our professional fees only.

Unless otherwise stated, the prices **will not** be inclusive of disbursements or other expenses which includes but is not limited to lodgement fees, taxes or stamp duty.

We will seek your authority prior to incurring any disbursements for you.

We will only undertake the Work once we have received written approval that a fixed price has been accepted.

Our fixed prices are guaranteed for 30 days from our Letter provided your circumstances and instructions remain substantially the same.

We will confirm with you in writing of any fixed prices that have been varied due to changes in your circumstances or instructions.

If you instruct us to undertake additional work not originally contemplated under the original Letter, we will communicate with you in writing of any further fixed prices or disbursements prior to proceeding.

You agree that should your circumstances or our instructions change to a degree that our engagement is terminated, we will mutually agree to a reasonable price for the work we have undertaken.

3 Disbursements

We may incur costs as your agent. If requested, we will give you the tax invoice from the relevant supplier.

To the extent any disbursements are incurred by us with your authority, you agree to pay us the amount we incur on your behalf provided we have obtained your prior consent.

4 Payment

We will not issue you with an invoice unless a fixed price has been agreed.

We will issue you with an invoice pursuant to the agreed fixed price per the invoice date terms being achieved as outlined in the Letter.

You consent to receiving electronic invoices.

The terms of payment of the invoice is **7 (SEVEN) days** from the date of issue. We can charge interest on overdue accounts at the rate equal to the Cash Rate Target set by the Reserve Bank of Australia (as at the date on the tax invoice) plus 3.5%.

5 Working with you

Your obligations are to:

a give us accurate, timely and full information, which may include necessary customer due diligence (**CDD**) information required under *Anti-Money Laundering and Counter-Terrorism Financing Act 2006* (**AML/CTF**); and

b give us accurate, timely and full instructions upon our request;

c keep us informed of any changes to your email, telephone, or address;

d pay our bills when they are due (except where a bill is disputed by you in accordance with this document); and

e comply with any reasonable cyber-security obligations notified by us to you, and otherwise take all reasonable measures to prevent attacks or the misuse of our or your information, including telephoning us and third parties (i.e. real estate agents, insurers, medical providers etc.) to confirm both our and your bank details before performing any transfer of funds, and not acting on emailed or text message requests for payment.

You consent to the provision of information electronically, and to acceptance of this agreement by electronic or digital signing.

Our contact points and the persons carrying out the work are set out in our covering letter.

If you have a matter where you urgently need assistance, please call rather than email, and indicate the urgency to the person taking your call.

We welcome feedback – good and bad. We would rather have the opportunity to rectify a problem than have a dissatisfied client. So please let us know if there is an issue, and we will do our best to provide a solution.

6 Agent

You authorise us to liaise with any advisor you appoint as your agent by way of letter (**Agent**), to complete the work until you tell us otherwise.

You agree the Agent is acting on your instructions and has your authority to:

a Communicate with us about the work;

b Give us instructions and receive our advice about the work;

c Receive notices from us on your behalf; and

d Give comments and material to us, solely to assist us perform the work and provide our legal advice to you.

7 Disputes

The following avenues are open to you under the terms of the *Legal Profession Act 2007* (Qld). In the event of a dispute in relation to legal costs:

a To apply for a costs assessment within 12 months of delivery of a bill or request for payment or such extended time as may be permitted by the court or costs assessor after considering the reason for the delay; and

b To apply to set aside the costs agreement within six years or other times as the law permits.

8 Incorporated Legal Practice

We are an incorporated legal practice and we advise that all legal services offered under this agreement will be provided by an Australian Legal Practitioner or by a paralegal, law clerk, administrative staff, under the supervision of an Australian Legal Practitioner.

The provision of legal services is regulated by the LPA however the provision of non-legal services under the proposed agreement (if any) is not regulated by that legislation.

9 Engaging of third parties

If this law practice engages on your behalf another law practice to provide specialist advice (eg a barrister) or services you will be advised as soon as is reasonably practicable. Any disclosures of your information will be done pursuant to our privacy obligations under this document.

10 Multiple clients

When acting for more than one person in undertaking the work, we will endeavour to act in the best interests of each person.

If we are unable to act in the best interest of each person, we will advise each of you to seek separate advice.

Any instruction we receive from one of you may be taken to be instructions from all of you.

All persons are jointly and severally responsible for paying the price and disbursements.

We confirm that:

a information or instructions given by one client may be shared with the other joint client(s);

b if one of you insists that information or instructions be withheld from the other(s), we will have to cease acting for all of you;

c if a conflict arises between you as joint clients, you all need to engage new solicitors and you may incur additional legal costs;

d all clients are jointly and severally liable for legal costs which means that we can recover legal costs from all or any of you.

11 Qualified advice

If the advice given by us to you is based on assumptions, qualifications or both, those assumptions or qualifications will be set out in the advice.

Once the advice is given, we are not liable for any part of the advice that is then found to be incorrect due to a later change in events, further information being given, further assumptions being made or assumptions on which the advice was based proving incorrect.

12 Reliance

Our advice is given exclusively to you and we are not responsible to anyone else for any loss or damage they suffer as a result of them relying on our advice.

You acknowledge you are advised, and have had the opportunity, to seek independent advice about this document.

13 Retention of files

We do not maintain physical files. All of our files are stored electronically.

You understand that we do not store any documents in secure storage.

You authorise us to destroy your file after seven years from completion of the Work and retain an electronic copy of your file if you request the file from us.

14 Recordings

Recordings may be made of telephone conversations and meetings (either online or in person) for our records.

We will obtain your consent (whether written or verbally) prior to undertaking any recording.

The recording will be stored on your electronic file for quality and assurance purposes and may be provided to another person or software for transcription.

15 Copyright

We may use precedents and other tools in providing our services to you. You have a right to use the documents we prepare for you only for the purposes for which they are supplied. Unless otherwise agreed, we retain the copyright in any documents that we prepare for you.

16 Confidentiality

We will keep all confidential information received from you in the course of the work, and persons performing work for you confidential.

Our use of this information is subject to our Privacy Policy that can be found on our website.

We confirm that legal professional privilege may apply to such confidential information and our Privacy Policy is subject to ensuring legal professional privilege is maintained between our communications.

You understand and accept that our obligation to you with respect to giving you information is restricted by these provisions. Only our law practice's personnel working for you will have an obligation to give advice only to you.

We may transfer material to our internal databases for learning and knowledge purposes. Before doing so, we will make reasonable efforts to ensure that confidential information is neither disclosed outside the law practice nor otherwise used inconsistently with the obligations referred to above.

17 Privacy

The *Privacy Act 1988* (Cth) and other privacy legislation (such as potentially the General Data Protection Regulations for EU citizens) applies when we collect, use and disclose information or an opinion about an individual whose identity is apparent or can reasonably be ascertained from the information or opinion (**personal information**).

You agree that we may manage your personal information in accordance with our Privacy Policy available on our website as amended from time to time.

You consent to us to act as agent in instructing other legal firms in drafting any documents which we are instructed to assist with.

You consent to us verifying your and your representative's identity electronically and to us disclosing your information to third parties to help us meet our AML/CTF obligations.

18 Statutory obligations

We are subject to statutory obligations including reporting obligations, that may include your confidential information.

19 Termination

You may terminate this document at any time by giving written notice to us, however you may remain liable for the legal costs up until that time.

If you do not pay monies in accordance with this document, we may suspend work and cease acting for you.

We have a general lien over any documents and property we hold at any time for you, as security for payment of invoices we have issued or may issue. This lien continues even after termination of our engagement.

We may terminate this document by giving at least seven days written notice to you for any reason.

If our engagement ends or your matter concludes before we complete the scope of work, you must pay that part of the fixed fee that reasonably reflects the value of the work performed to the date of the termination or conclusion of the matter, plus any expenses and disbursements which are not included in the fixed fee but have been reasonably incurred in order for us to complete the work.

20 Questions or concerns

If you have a problem with the performance of the work, service of the lawyer or wish to discuss legal costs, please contact Darius Hii, Director, on 0403 923 374 or darius@chatlegal.com.au.

If you are still not satisfied with the way your concern has been resolved, you may contact the Queensland Law Society on +61 7 3842 5842 or GPO Box 1785, Brisbane, Queensland 4001, Australia.

21 General

The law of Queensland will apply to this document.

You have the right to enter into a costs agreement with us on the basis that a similar law of another state or territory is applicable, for instance where our services are being primarily provide din another state or territory or where the matter has a substantial connection with that other state or territory.

Further you have the right in certain circumstances to notify us in writing in accordance with the time limits of the corresponding law that you require the law of another jurisdiction to apply.